

23STCV09731 23STCV09731

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 23STCV09731 Hearing Date: July 16, 2026 Dept: 617

Dept.

617

Date:

7-16-26

Case

#: 23STCV09731

Trial

Date: 6-21-27

SANCTIONS

MOVING

PARTY: Defendant, County of Los Angeles

RESPONDING

PARTY: Plaintiff, Kourtney Kuder

RELIEF

REQUESTED

Motion

for Terminating Sanctions, or Alternatively, Issue, Evidentiary, or Monetary

Sanctions

SUMMARY

OF ACTION

Plaintiff

Kourtney Kuder was terminated as a probationary firefighter with Defendant County of Los Angeles. On May 1, 2023, Plaintiff sued Defendant under the Fair Employment and Housing Act, alleging discrimination and harassment based on her sex.

RULING: Denied.

Defendant moves for terminating

sanctions, or alternatively, issue, evidentiary, or monetary sanctions against Plaintiff for alleged spoliation of evidence after Plaintiff's phone was "destroyed" in a boating incident. Defendant claims that Plaintiff failed to preserve evidence of text messages between her and colleagues, which Plaintiff relies on in support of her claims to show false rumors were being spread about her. Plaintiff opposes the motion, denying any intentional spoliation. Defendant's motion is denied.

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trial court has inherent power to "control the litigation before it." (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1431.) When faced with litigation abuse, a court has discretion to preclude evidence to ensure a fair trial (Peat, Marwick, Mitchell & Co. v. Superior Court (1988) 200 Cal.App.3d 272, 288) and to dismiss an action if no other remedy could ensure a fair trial. (Stephen Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 764.) Such remedies are available when a party intentionally destroys evidence. (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.)

"Spoliation

of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in pending or future litigation." (Williams, supra, 167 Cal.App.4th at p. 1223.) "[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (Id. at p. 1227.)

Neither

terminating sanctions nor issue, evidentiary, or monetary sanctions are warranted. The evidence presented does not show that Plaintiff's failure to preserve the relevant data on her phone was intentional. Plaintiff stated in her deposition that she had moved to Tennessee, that her old phone stopped working on her way to work, and that while in Tennessee she moved to a new home. [Seemen Decl. ¶ 2, Ex. A: Plaintiff's Depo. pp. 17:12-15, 123:20-124:4. 125:5-126:13.] She explained that she currently could not locate her phone and that it may be at her previous home in Tennessee. [Id. at pp. 125:21-126:4.] She explained her inattention to the whereabouts of her phone was due to her belief that she had already produced the relevant information through her discovery production. [Id. at pp. 123:20-124:4.] These facts do not indicate intentional spoliation, but rather the inadvertent loss of a damaged phone during subsequent moves at a time Plaintiff believed (mistakenly) that the phone served no purpose. [Cf. Williams, supra, 167 Cal.App.4th at p. 1224 [intentional spoliation where party failed to pay storage fees to prevent sale and destruction of files despite repeated warnings].) The absence of intentional conduct is further buttressed by the fact that Plaintiff attempted to comply with Defendant's discovery requests by providing screenshots of the texts and creating spreadsheets of the messages through the "iMazing" software program. [Sheldon Decl. ¶¶ 9, 12, Exs. 5-6, 9; Seemen Decl. ¶ 2, Ex. A: Plaintiff's Depo. pp. 107:8-108:2.] The record thus provides no basis for imposing sanctions against Plaintiff. Defendant's motion is therefore denied.

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Court's denial of the sanctions request does not preclude Defendant from later challenging the introduction of the text messages during trial or requesting an inference under Evidence Code section 413 on a more developed record demonstrating intentional spoliation. (New Albertsons, Inc., supra, 168 Cal.App.4th at p. 1434.)

Defendant

to give notice.